
MEMORANDUM

TO: Mayor Patrick Collins, and City Council
FROM: TJ Barttelbort, Purchasing Manager 
DATE: December 18, 2024
SUBJECT: Consideration of Bid #E-7-25 for an Agreement between the City of Cheyenne and Alco Fence Co. Inc. for the Happy Jack Landfill Litter Fence Maintenance and Repair Services project

Bid #E-7-25 was solicited for the Happy Jack Landfill Litter Fence Maintenance and Repair Services.

One (1) bidder responded to this bid, and the bid tabulation is attached. The Bid was received from:

1. Alco Fence Co. Inc. (Cheyenne, Wyoming)

The bid was reviewed by Vicki Nemecek (Public Works), Adele Bartel (Public Works), and Samuele Quattrini (Landfill), and their recommendation is to accept the lowest responsive bid from Alco Fence Co. Inc.

The total Bid Award is for \$381,800.00, with the following amounts allocated for repairs over the three (3) year contract term:

2025 - \$122,500.00

2026 - \$127,800.00

2027 - \$131,500.00

This project will be completed on a time and materials basis, based on the submitted unit costs for each bid item/task. The Contractor will complete maintenance and repairs services on a bi-annual basis, and will be available to perform any emergency repairs that arise.

The attached Bid Tabulation shows the individual unit costs for each bid item/task. Upon the Contractors arrival on-site, an initial inspection shall be conducted with the City, to identify all required repairs. The Contractor shall prepare a price proposal to address all repairs, in accordance with their submitted pricing under this Bid. The City shall issue a Notice to Proceed based on the submitted price proposal, and the repairs may immediately commence.

Funding: Solid Waste Fund / Maintenance

				Alco Fence Co. Inc.	
Line Item	Description	Quantity	Unit of Measure	Unit Cost	Total
YEAR 1					
Year 1 - 1	Bi-Annual Mobilization and Inspection	2	EACH	\$6,264.80	\$12,529.60
Year 1 -2	Hourly Labor Rate for Repairs (Hourly CREW Rate)	1	HOUR	\$346.37	\$346.37
Year 1 - 3	Cadmium Coated Clips	1	EACH	\$1.15	\$1.15
Year 1 - 4	Cable Replacement Including Hardware (Vertical)	1	EACH	\$1,032.00	\$1,032.00
Year 1 - 5	Cable Replacement Including Hardware (Horizontal)	1	EACH	\$1,032.00	\$1,032.00
Year 1 - 6	Repair Holes in Netting (4ft or Smaller)	1	EACH	\$1,025.00	\$1,025.00
Year 1 - 7	Bi-Annual Netting Section Replacement	4	EACH	\$3,640.00	\$14,560.00
Year 1 - 8	Pole Replacement (If Needed)	1	EACH	\$26,445.00	\$26,445.00
Year 1 - 9	Bi-Annual Summary Report	2	EACH	\$615.00	\$1,230.00
Year 1 - 10	Daily Equipment (Lift) Rental Rate	1	DAY	\$1,656.00	\$1,656.00
Year 1 - 11	Emergency Mobilization Rate	1	EACH	\$1,625.00	\$1,625.00
Year 1 - 12	Emergency Hourly Labor Rate for Repairs (Hourly CREW Rate)	1	HOUR	\$367.00	\$367.00
YEAR 2					
Year 2 - 1	Bi-Annual Mobilization and Inspection	2	EACH	\$6,535.00	\$13,070.00
Year 2 -2	Hourly Labor Rate for Repairs (Hourly CREW Rate)	1	HOUR	\$362.00	\$362.00
Year 2 - 3	Cadmium Coated Clips	1	EACH	\$1.20	\$1.20
Year 2 - 4	Cable Replacement Including Hardware (Vertical)	1	EACH	\$1,076.00	\$1,076.00
Year 2 - 5	Cable Replacement Including Hardware (Horizontal)	1	EACH	\$1,076.00	\$1,076.00
Year 2 - 6	Repair Holes in Netting (4ft or Smaller)	1	EACH	\$1,067.00	\$1,067.00
Year 2 - 7	Bi-Annual Netting Section Replacement	4	EACH	\$3,795.00	\$15,180.00
Year 2 - 8	Pole Replacement (If Needed)	1	EACH	\$27,575.00	\$27,575.00
Year 2 - 9	Bi-Annual Summary Report	2	EACH	\$642.00	\$1,284.00
Year 2 - 10	Daily Equipment (Lift) Rental Rate	1	DAY	\$1,725.00	\$1,725.00
Year 2 - 11	Emergency Mobilization Rate	1	EACH	\$1,695.00	\$1,695.00

Year 2 - 12	Emergency Hourly Labor Rate for Repairs (Hourly CREW Rate)	1	HOUR	\$385.00	\$385.00
YEAR 3					
Year 3 - 1	Bi-Annual Mobilization and Inspection	2	EACH	\$6,725.00	\$13,450.00
Year 3 - 2	Hourly Labor Rate for Repairs (Hourly CREW Rate)	1	HOUR	\$371.00	\$371.00
Year 3 - 3	Cadmium Coated Clips	1	EACH	\$1.25	\$1.25
Year 3 - 4	Cable Replacement Including Hardware (Vertical)	1	EACH	\$1,110.00	\$1,110.00
Year 3 - 5	Cable Replacement Including Hardware (Horizontal)	1	EACH	\$1,110.00	\$1,110.00
Year 3 - 6	Repair Holes in Netting (4ft or Smaller)	1	EACH	\$1,098.00	\$1,098.00
Year 3 - 7	Bi-Annual Netting Section Replacement	4	EACH	\$3,905.00	\$15,620.00
Year 3 - 8	Pole Replacement (If Needed)	1	EACH	\$28,380.00	\$28,380.00
Year 3 - 9	Bi-Annual Summary Report	2	EACH	\$660.00	\$1,320.00
Year 3 - 10	Daily Equipment (Lift) Rental Rate	1	DAY	\$1,780.00	\$1,780.00
Year 3 - 11	Emergency Mobilization Rate	1	EACH	\$1,745.00	\$1,745.00
Year 3 - 12	Emergency Hourly Labor Rate for Repairs (Hourly CREW Rate)	1	HOUR	\$395.00	\$395.00
				Alco Fence Co. Inc.	
Line Item	Description	Quantity	Unit of Measure	Unit Cost	Total
Year 1 - 1	Percentage Markup on Addittional Equipment / Materials	1	PERCENT	15%	15%
Year 2 - 2	Percentage Markup on Addittional Equipment / Materials	1	PERCENT	15%	15%
Year 3 - 3	Percentage Markup on Addittional Equipment / Materials	1	PERCENT	15%	15%

CITY OF CHEYENNE, WYOMING
AGREEMENT

Bid No. E-7-25

Contract No. _____

THIS AGREEMENT, entered into this ____ day of _____, 2025, by and between the CITY OF CHEYENNE, WYOMING, hereinafter referred to as the "CITY", and **ALCO FENCE CO. INC.**, hereinafter referred to as the "CONTRACTOR".

WITNESSETH that the Contractor and the City, for the considerations stated herein, mutually agree as follows:

ARTICLE 1. STATEMENT OF WORK. The Contractor shall furnish all supervision, technical personnel, labor, materials, machinery, tools, equipment, and services, including utility and transportation services, and perform and complete all work in an efficient and workmanlike manner in the construction of the "**Happy Jack Landfill Litter Fence Maintenance and Repair Services**" project all in strict accordance with the Contract Documents including all addenda thereto, numbered and dated: **Addendum One (1) dated November 8, 2024, and Addendum Two (2) dated December 2, 2024.**

ARTICLE 2. RESPONSIBLE DESIGNEE FOR THE CITY. The Contractor shall in any and all matters relating to the scope of services to be provided under this Contract or any other provisions herein, contact the City Engineer, or his/her designated representative.

ARTICLE 3. TIME FRAME FOR COMPLETION. The services to be performed under this Agreement shall commence on the date stipulated in the "Notice to Proceed" that will be issued by the City. The work shall be completed by **December 31, 2027**. If the work has not been completed within the time stipulated above, including any extensions of time issued by the City for excusable delays, the Contractor and his/her sureties shall pay the City fixed, agreed liquidated damages, as stipulated in the Supplemental Conditions, for each calendar day of delay until the work is completed.

ARTICLE 4. COMPENSATION AND METHOD OF PAYMENT. The CITY will pay the CONTRACTOR for the performance of the Contract in current funds, **for actual services performed, a total not to exceed for Three Hundred Eighty-One Thousand, Eight Hundred Dollars (\$381,800.00)**, with the following amounts allocated for each year of the contract: **Calendar Year 2025, One Hundred Twenty-Two Thousand, Five Hundred Dollars (\$122,500.00), Calendar Year 2026, One Hundred Twenty-Seven Thousand, Eight Hundred Dollars (\$127,800.00), Calendar Year 2027, One Hundred Thirty-One Thousand, Five Hundred Dollars (\$131,500.00)**. In the event there are changes in the estimated quantities shown on the Bid Proposal, the unit prices multiplied by the actual quantities shall govern, and the total contract amount will be adjusted accordingly. The City agrees to pay the above amount for contractual services in the following manner, upon receipt of appropriate documentation:

- a. The Contractor will be paid on a monthly basis for the percentage of estimated work completed. Submittal will be at least seven (7) business days prior to the

payable due date as established annually by the City Treasurer's Office. The pay request shall be submitted on the Contract Payment Request Form and Itemized Pay Request or the AIA Documents G702 and G703. The engineer will review the estimate for approval prior to payment.

ARTICLE 5. CONTRACT. The executed Contract Documents shall consist of the following:

- | | |
|-----------------------------|--------------------------------------|
| 1. This Agreement; | 6. General Conditions and Insurance; |
| 2. Addenda; | 7. Supplemental Conditions; |
| 3. Invitation for Bids; | 8. Specifications and Special |
| 4. Instructions to Bidders; | Provisions; and |
| 5. Signed Bid Proposal; | 9. Drawings. |

This Agreement, together with other documents enumerated in this Article 5, which said other documents are as fully a part of the Contract as if hereto attached or herein repeated, forms the Contract between the parties hereto.

IN WITNESS WHEREOF, THAT the governing body of the City of Cheyenne has authorized the Mayor as Executive Officer of the City to enter into this Agreement, and that the parties hereto have caused this Agreement to be executed on the day and year in the first part herein written.

ATTEST:

CITY OF CHEYENNE, WYOMING

Kristina F. Jones, City Clerk

Patrick Collins, Mayor

Contractor

Alco Fence Co. Inc.

By

Title: _____
2421 E 7th Street
Cheyenne, Wyoming 82001